

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 18, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV00633

COUNTY OF SANTA CRUZ, et al. v. FINSAND, et al.

DEFENDANT JRG ATTORNEYS AT LAW’S DEMURRER TO AND MOTION TO STRIKE FIRST AMENDED CROSS-COMPLAINT

The demurrer is sustained without leave to amend and the motion to strike is granted.

Defendants Jeffrey Finsand, Benjaporn Finsand, and Donald C. Schwartz’s (“defendants”) first amended cross-complaint was filed December 18, 2025, and alleges seven causes of action against cross-defendants JRG Attorneys at Law, Law Offices of Rice, Luxon, and Bolster-Grant, Benjamin Frederick Rice, Jr. and M. Allen Hopper related to their allegedly negligent and fraudulent legal work.

Cross-defendant JRG Attorneys at Law filed its demurrer to the initial cross-complaint on November 17, 2025. A joinder was filed on December 9, 2025, by cross-defendant Frederick Benjamin Rice, Jr. The amended cross-complaint was filed before hearing on that earlier demurrer, mooted the hearing. Cross-defendant thereafter filed this renewed demurrer and motion to strike.

Defendants’ opposition and Mr. Schwartz’s joinder were filed one court day late but failed to acknowledge or seek leave for the late filings. The Court declines to consider them. (Cal. Rules of Court, rule 3.1300(d).) Defendants also failed to oppose the demurrer to the sixth and seventh causes of action, from which the Court may infer defendants have abandoned those claims. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934; Cal. Rules of Court, rule 3.1113(a).)

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Based on the motions, the Court finds the first amended cross-complaint and each cause of action therein fails to state a cause of action against JRG and is improper, uncertain, ambiguous, and/or unintelligible (Code Civ. Proc., § 430.10, subd. (e), (f).) Based upon these fatal uncertainties and the fact that this amended pleading is identical in substantive allegations to the previous one, the Court finds there is no reasonable possibility that the defects can be cured by further amendment. (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037.) The first amended cross-complaint against JRG Attorneys at Law is dismissed with prejudice.

Further, the Court grants the motion to strike related to JRG Attorneys at Law, specifically striking the following from the first amended cross-complaint:

1. Reference to BENJAPORN FINSAND and the “Finsand family” in the caption and Statement of the Case, pp. 4, lines 13; 17.
2. References to Benjaporn Finsand and claims for loss of consortium in p. 5, ¶ 2.
3. References to Benjaporn Finsand and “Mrs. Finsand” in the Second Cause of Action, p. 10, ¶ 15, p. 11, ¶ 23-24.
4. References to Benjaporn Finsand in the Third Cause of Action, p. 12, ¶ 25-28.
5. References to Benjaporn Finsand and “loss of consortium damages” in the Fourth Cause of Action, pp. 12-13, ¶ 29-32.
6. The entire Sixth Cause of Action for financial elder abuse, p. 14, ¶ 37-43.
7. Prayer for Relief item 6 (“for trebling pursuant to the Elder Abuse Claims herein”) p. 16.
8. The prayer for relief, subheading “For Benjaporn” and prayer for relief items 10-12, p. 16.

No. 25CV03072

WELLS FARGO, N.A. v. RATNAGOPAL

PLAINTIFF’S MOTION FOR SUMMARY JUDGMENT/ADJUDICATION

As explained below, the motion for summary judgment is granted. Judgment is entered for plaintiff Wells Fargo, N.A. and against defendant Jeyachandran Ratnagopal.

I. BACKGROUND AND MOTION

This is a limited jurisdiction collection matter filed by plaintiff Wells Fargo, N.A. against defendant Carrie Wildenboer seeking \$20,855.54 for an unpaid credit card debt. There are two

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causes of action for breach of contract. Defendant, who is self-represented, filed an answer and affirmative defenses. As discussed below, defendant did not oppose the motion.

II. LEGAL STANDARDS

In a summary judgment motion, the court must determine from the evidence presented that “there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law....” (CCP §437c(c).) In making this determination, the court may rely on “affidavits, declarations ... and matters of which judicial notice shall or may be taken.” (CCP §437c(b).) The plaintiff “may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” (CCP §437c(p)(2).)

The court’s sole function on a motion for summary judgment is issue-finding, not issue determination. To be material, the fact must relate to some claim or defense in issue under the pleadings and be in some way essential to the judgment; if proved, it could change the outcome of the case. “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof...” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) If there is a single such issue, the motion must be denied. (*Versa Tech., Inc. v. Superior Court* (1978) 78 Cal.App.3d 237, 240.)

A. Shifting burdens

A plaintiff reaches his burden on summary judgment by showing prima facie evidence for each element of its causes of action. (CCP § 437c(p); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519; *California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630.) The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue. (*Ibid*). Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.) However, if all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary judgment or adjudication as a matter of law. (CCP § 437c(c); *Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. If the moving party carries this burden, it causes a

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shift and the opposing party is then subject to its own burden of production to make a prima facie showing that a triable issue of material fact exists. (*Id.* at 850.) Each material fact must have a citation to supporting evidence. (CCP §437c(b)(1).) If a triable issue is raised as to any of the facts in your separate statement, the motion may be denied. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.) Opposition declarations are to be liberally construed while the moving party's evidence is strictly scrutinized. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.)

B. Separate statement requirements

"The separate statement 'is an indispensable part of the summary judgment or adjudication process' because it plainly identifies factual issues and allows the trial court to determine whether a trial is required to establish those facts and resolve the dispute. [Citations.] 'Opposition separate statements must cite to facts and evidence for the evidence to be considered by the court.' [Citations.]" (*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 218, 226.)

Without a separate statement with references to supporting evidence it is impossible to demonstrate the existence of disputed facts. (*Bacoka v. Best Buy Stores, L.P.* (2021) 71 Cal.App.5th 126, 131; *Blackman v. Burrows* (1987) 193 Cal.App.3d 889, 894; Cal. Rules of Court, rule 3.1350(h).) "Admissible evidence is required to show that disputed issues of material fact exist. [Citation.] 'Responsive evidence that 'gives rise to no more than mere speculation' is not sufficient to establish a triable issue of material fact.' [Citations.]" (*Champlin/GEI Wind Holdings, LLC v. Avery, supra*, 92 Cal.App.5th at p. 226.)

III. MATERIAL FACTS ARE NOT IN DISPUTE

The 28 facts presented in plaintiff's separate statement are supported by plaintiff's qualified witness declaration and its exhibits, which include the credit card contract applicable to the account at issue and billing statements provided to defendant. These facts establish prima facie evidence for each element of plaintiff's causes of action for express and implied breach of contract. As discussed below, defendant failed to file an opposition memorandum or any response to plaintiff's separate statement. Based upon the undisputed facts, plaintiff has carried its burden of production.

A. Breach of contract – express and implied

Defendant applied for and was issued a Wells Fargo credit card ("Subject Account") ending in 0994. (Plaintiff's Separate Statement of Undisputed Material Facts ("UF"), No. 1, 15.) Plaintiff sent Defendant the credit card along with the written Customer Agreement associated with the credit card. (UF 2, 16.) Defendant accepted the terms of the written agreement when

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they used the Wells Fargo Credit Card. (UF 3, 17.) Pursuant to the terms of the Customer Agreement associated with the card, Plaintiff would extend credit to Defendant whereby Defendant could charge goods, services, or obtain cash advances on the credit line. (UF 4, 18.) In exchange, Defendant was to repay the principal amount lent plus applicable interest and finance charges. (UF 5, 19.)

In accordance with the Customer Agreement, Defendant used the account, and made payments, charges, and incurred a balance thereon. (UF 6, 20.) Plaintiff sent Defendant monthly statements of the Subject Account each and every billing period. (UF 7, 21.) The statements of the account reflected all charges, payments, minimum payment due that billing period, and any fees and interest incurred for each billing period. (UF 8, 22.) There is no record of any unresolved disputes on the account. (UF 9, 23.) There is no record of any active lawsuits against Wells Fargo Bank, N.A. for unresolved disputes on this credit card account. (UF 10, 24.) Defendant's last payment on the Subject Account was on July 27, 2023. (UF 11, 25.) Thereafter, no further payments were made by the Defendant, and therefore, pursuant to the terms of the Customer Agreement, Defendant was in default. (UF 12, 26.) The balance due on Defendant's Subject Account is \$16,776.69. (UF 13, 27.) As a result of Defendant's unpaid balance, Plaintiff has been damaged in the sum of \$16,776.69. (UF 14, 28.)

B. Defendant's opposition

Defendant filed several documents in opposition, which are all related to a different case involving him and plaintiff (case no. 25CV01700): Notice of Opposition and Request for Relief, Declaration of Jeyachandran Ratnagopal, Memorandum of Points and Authorities, Defendant's Evidentiary Objections, Proposed Order, Request for Accounting and Alternative Request for Continuance, and Proof of Service. All of these documents appear to relate to case no. 25CV01700, but were inadvertently filed in this action.¹ The Court reviewed defendant's pleadings in 25CV01700 to determine if he mis-filed his opposition to this motion there, but all of the opposition papers in that court file are directed to the June 2, 2026 motion to enter judgment pursuant to Code of Civil Procedure section 664.6. In short, defendant did not file any opposition to this motion, or at the least, there is none reflected in this court file. Plaintiff's reply discusses an opposition, but again, it is not in the court's file.

¹ The Court takes judicial notice of case no. 25CV01700, which is a limited jurisdiction collections case between these same parties but related to a different debt (credit charges of \$8,852.66 for credit account ending in 3944). That action was heard on June 2, 2026, for entry of judgment pursuant to Code of Civil Procedure section 664.6 and the parties indicated on the record the matter settled and was continued. Confusingly, defendant lists both case numbers on each pleading he filed in both cases, noting the cases are related, which they are not.

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“Without a separate statement with references to supporting evidence ... it is impossible ... to demonstrate the existence of disputed facts.” (Code Civ. Proc., §437c, subd. (b)(3); *Lewis v. County of Sacramento* (2001) 93 Cal.App.4th 107, 115 (disapproved on other grounds by *Kaufman & Broad Communities, Inc. v. Performance Plastering* (2005) 133 Cal.App.4th 26, 41-42; see also *Blackman v. Burrows* (1987) 193 Cal.App.3d 889, 895.)

The law is clear that self-represented litigants must adhere to the same procedural requirements, including deadlines for filing papers, as attorneys. Self-represented litigants are not entitled to special treatment. (*Nelson v. Gaunt* (1981) 125 Cal. App.3d 623, 638-639.) While defendant has little or no legal training, self-represented litigants are required to follow the same procedural rules that govern civil litigation. (*McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.) A party representing himself is to be treated like any other party and is entitled to the same, but no greater, consideration than other litigants and attorneys. (*Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; *Barton v. New United Motor Manufacturing, Inc.* (1996) 43 Cal.App.4th 1200, 1210). In other words, defendant’s failure to file a substantive written opposition to the motion for summary judgment is afforded the same treatment as would any other party engaging in the same conduct who was represented by counsel. To make exceptions for self-represented parties would “lead to a quagmire in the trial courts.” (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 985.)

Since plaintiff has met its burden of producing admissible evidence for each element of its claims, and defendant failed to file any opposition, summary judgment in plaintiff’s favor is appropriate.